

25LBCV02502 25LBCV02502

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-09-24

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LB%20%2CS27%2C09%2F24%2F2026

Source SHA-256: 9f6adc3bfefa423a193429c1ffdaa5f0c5538344a011a5c170541f43e38ef2fd

Case Number: 25LBCV02502 Hearing Date: September 24, 2026 Dept: S27

Plaintiff filed this lawsuit

against Defendant for damages arising out of a trip and fall. Defendant propounded FROGs and RPDs, and Plaintiff served responses. After meeting and conferring, the parties were unable to resolve issues relating to production of Plaintiff's VA medical records, and this motion was filed.

At issue are RPDs 12, 13, and 14

and FROGs 6.4 and 6.7. The subject RPDs seek production of Plaintiff's medical records.

Plaintiff responded to the RPDs, stating, "After a diligent search and reasonable inquiry, Plaintiff is not in possession or control of any responsive documents. Plaintiff's treatment has primarily been through the Veterans Administration medical system. However, as a result of locating, Plaintiff is unable to produce responsive documents at this time. Investigation and discovery are continuing."

The subject FROGs seek information about Plaintiff's care and treatment.

Plaintiff responded to the subject FROGs, stating, "Plaintiff received medical treatment through the Long Beach Veterans Administration and obtained a second opinion from UGI, with treatment involving multiple rotating physicians through the VA system. Plaintiff's primary VA facility is located in Prescott, which may refer Plaintiff to a facility in Lake Havasu that, in turn, may refer Plaintiff to private care providers as necessary."

The relevant timeline is as

follows: Plaintiff made a request for his records from the VA on 7/15/25. He filed suit on 9/08/25. Defendant propounded discovery on 3/26/26. Plaintiff responded to discovery, with the

responses detailed above, on 6/04/26. Plaintiff made a second VA records request on 7/27/26.

Defendant makes much of this timeline, arguing Plaintiff's failure to search for records between receiving discovery on 3/26/26 and responding on 6/04/26 renders his responses deficient, as he was required to conduct the search in response to receiving discovery. The Court finds Plaintiff's request, on 7/15/25, for his own medical records was sufficient to satisfy his obligation to "search for" his records. That request remained outstanding at the time he served his responses, such that it satisfies his obligation to verify he has made a reasonable search and exercised reasonable diligence in obtaining his records.

Plaintiff explains, in opposition to the motion, that the VA is "notoriously slow" in responding to medical record requests. Defendant explains, in the moving papers, that it cannot subpoena the records because the VA is a federal facility, and only Plaintiff can obtain the records. The situation creates a quandary, as Plaintiff needs to obtain the records, but the VA is making that difficult.

The Court wishes to hear from the parties, at the hearing, about available avenues for obtaining the records and what Plaintiff is doing to obtain the records.

Has Plaintiff physically gone to a VA facility to ask for the records? Has Plaintiff made follow-up phone calls to obtain the records?

Plaintiff cannot merely send off the records requests and then hope and wait for the VA to respond, knowing it is loathe to do so. The Court also wishes to know whether there is an app, similar to the MyChart app most medical providers use, where Plaintiff can access his own medical records at any time without the need to authorize their release.

The Court's tentative ruling is to not impose sanctions, as Plaintiff has attempted to obtain the records and been unable to do so. The Court will consider this issue at the hearing after hearing from Plaintiff concerning available methods for obtaining the records and what reasonable and diligent attempts he has made to obtain same.

If the parties submit on the tentative ruling, the Court will continue the hearing for two months for Plaintiff to continue to make diligent attempts to obtain his records and the parties will be ordered to file status reports re: the discovery at least two weeks prior to the continued hearing.

Defendant is ordered to give notice.